3. Also, since our first brief filed on April 8, 2021, the Supreme Court of Canada has issued new guidance with respect to the law upon which this motion is brought, in particular the "discoverability principle", in *Grant Thornton LLP v New Brunswick*, 2021 SCC 31 ("*Grant*").

4. As well, it became clear after the 2021 filings that we as counsel for the AMF Respondents did not adequately appreciate the legal issue and applicable law in our prior submissions, and that revised briefing was necessary for the court to be fully apprised of the analysis which it is tasked to undertake.

5. Therefore, counsel has agreed that supplemental briefing is appropriate in this motion. This brief is intended to supplant fully our brief filed April 8, 2021, and the court need not refer to that brief. If any party wishes to file supplemental briefing in response to this brief, then our clients consent to such filing.

6. The parties also agreed to supplemental affidavits in this motion, and we are filing an affidavit attaching an email between the applicants' former legal counsel and their insurance adjuster as supplemental evidence on this motion.

PROCEDURAL BACKGROUND

7. The applicants in this proceeding previously filed a notice of action on June 29, 2010 against 176 NSL, then-named "AFL Tank Manufacturing Limited", in Hfx No. 331744 ("2010 Action"). In the 2010 Action, the applicants claimed losses in negligence arising from the leakage of oil from oil tanks which had been manufactured by 176 NSL. That proceeding did not name the respondents to this proceeding, Arichat Metal, Mr. Boudreau, and Mr. Boucher, nor did it name 3236552 Nova Scotia Limited ("323 NSL").

8. 176 NSL filed a notice of withdrawal of its defence and consent to judgment on February 13, 2018. On or around January 24, 2019, Justice Timothy Gabriel assessed the applicants' damages and awarded the applicants judgment against the defendant AFL Tank Manufacturing Ltd, at that time known as 176 NSL, in the 2010 Proceeding in the amount of $754,262.63. However, the applicants did not collect judgment from 176 NSL.